

Lalita Kumari v. State of U.P. & Ors.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 24 April 2026 · WRIT - C No. 4111 of 2026 ·
Writ disposed of; petitioner directed to apply under Clause 6.5 before the Executive Engineer.

HEADNOTE

Challenge to an electricity bill and consequent disconnection lies before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A writ filed after applying to the wrong officer was disposed of by directing the consumer to move that authority for a reasoned decision within three weeks.

FACTUAL SUMMARY

Lalita Kumari challenged an electricity bill generated by the U.P. Power Corporation and the disconnection of her supply that followed. She had already moved an application before opposite party no. 3. The Lucknow Bench recorded that the competent authority for such a grievance under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the Executive Engineer concerned (opposite party no. 2), not opposite party no. 3.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

The competent authority to consider a consumer's challenge to an electricity bill and consequent disconnection is the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was directed to apply to that officer (opposite party no. 2), who shall verify the facts and take a reasoned decision within three weeks of presentation of a certified copy of the order; consequences follow as per law. The writ was disposed of without a merits determination. ¶ 1-2

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Challenge to an electricity bill and consequent disconnection lies before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. A writ filed after applying to the wrong officer was disposed of by directing the consumer to move that authority for a reasoned decision within three weeks. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE IMPUGNED ELECTRICITY BILL

NOT DECIDED — VALIDITY OF THE CONSEQUENT DISCONNECTION